Candleweb Terms of Service/ Use

Our Terms of Service/ Use were last updated on the 29th of January 2023

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Introduction

These Candleweb Terms of Service/Use are entered into between you (hereinafter referred to as the "User") and Candleweb (as defined below). By accessing, downloading, using or clicking on "I agree" to accept any Candleweb Services (as defined below) provided by the Company (as defined below), you agree that you have read, understood and accepted all of the terms and conditions stipulated in these Terms of Service/ Use (hereinafter referred to as the "Terms") as well as our Privacy Policy (link). In addition, when using some features of the Services, you may be subject to specific additional terms and conditions applicable to those features.

PLEASE READ THE TERMS CAREFULLY AS THEY GOVERN YOUR USE OF CANDLEWEB SERVICES.

General

As with any asset, the values of Digital Currencies (as defined below) may fluctuate significantly and there is a substantial risk of economic losses when purchasing, selling, holding or investing in Digital Currencies and their derivatives. By making use of Candleweb Services, the User acknowledges and agrees that:

- The User is aware of the risks associated with transactions of digital currencies and their derivatives;
- The User shall assume all risks related to the use of Candleweb services and transactions of digital currencies and their derivatives; and
- Candleweb shall not be liable for any such risks or adverse outcomes.

By accessing, using or attempting to use Candleweb Services in any capacity, the User acknowledges that it accepts and agrees to be bound by these Terms. If the User does not agree, the User must not access Candleweb or utilize Candleweb services.

Nothing herein constitutes an offer or a solicitation for the purchase or sale of any security to any person in any jurisdiction whether or not such an offer or solicitation is authorized.

Interpretation and Definitions

For the purposes of these Terms of Service/ Use, the following words and phrases shall have the following meanings assigned to them unless the context otherwise requires:

"**Account**" means a unique virtual account created for the user to access our Service or parts of our Service.

"**Artificial Intelligence**" **or** "**AI**" means a set of algorithms and mathematical models designed to perform a specific task, simulate human cognitive functions such as learning and problem-solving, and improve its performance over time through experience, without being explicitly programmed for each task or scenario. AI systems may include machine learning algorithms, neural networks, expert systems, natural language processing, and other technologies capable of processing large volumes of data, recognizing patterns, making predictions, or performing

automated actions based on programmed rules or statistical analysis. The term "AI" includes both narrow AI, which is designed to perform a specific task or set of tasks, and general AI, which is designed to exhibit intelligence across a broad range of cognitive tasks and environments.

"**Candleweb**" refers to all parties that run Candleweb, including but not limited to legal persons, unincorporated organizations and teams that provide Candleweb Services and are responsible for such services. For convenience, unless otherwise stated, references to "Candleweb", "the Company", "our" and "we" in these Terms specifically mean Candleweb Services Limited, its Services and its Operators.

"**Candleweb Platform Rules**" refer to all rules, interpretations, announcements, statements, letters of consent and other contents that have been and will be subsequently released by Candleweb, as well as all regulations, implementation rules, product process descriptions, and announcements published in the Help Centre or within products or service processes.

"**Company**" refers to Candleweb Services Limited.

"**Device**" means any device that can access the Service including but not limited to a computer, a phone or a digital tablet.

"**Digital Currencies**" refer to encrypted or digital tokens or cryptocurrencies with a certain value that are based on blockchain and cryptography technologies and are issued and managed in a decentralized form.

"**Disclaimer**" refers to a statement that limits someone's legal responsibilities.

"**Feedback**" means feedback, innovations or suggestions sent by the User regarding the attributes, performance or features of our Service.

"**Indemnify**" **or** "**Indemnity**" refers to an individual or organization's contractual obligation to compensate the losses suffered by another individual or organization from legal proceedings such as lawsuits.

"**KYC**" refers to the "know-your-customer" process that Candleweb has put in place before entering into a business relationship or conducting transactions with its Users. As part of this process, Candleweb may do anything that it deems necessary in order to identify Users, verify their identity, scrutinize and investigate User transactions, or comply with any applicable law or regulation.

"**Liability**" refers to losses from any type of legal claim, whether the claim is based on a contract, tort (including negligence), or other reason, and whether or not those losses could have been reasonably anticipated or foreseen.

"**Platform**" refers to the digital platform made accessible via any website, page, feature, or content owned or operated by Candleweb, any mobile application developed or provided by Candleweb or any Candleweb API Connection (as defined below) made available to Users or third-party applications relying on such Candleweb API Connection or by such other means as Candleweb may prescribe from time to time for the use of Candleweb Convert Services.

"**Products**" refer to the products or items offered for sale on the Service.

"**Orders**" mean a request by the User to purchase Products from Candleweb.

"**Promotions**" refer to contests, sweepstakes or other promotions offered through the Service.

"**Service**" **or** "**Services**" refers to all platforms developed to offer Candleweb Services and includes independently-operated platforms, websites and clients. It also refers to the Website (candleweb.io), bot (Candlebot), and our application _____ available at different App Stores.

"**Subscription**" refers to _____

"**User**" refers to the individual accessing or using the Service, or the company, or other legal entity on behalf of which such individual is accessing, visiting or using the Service, as applicable.

"**Third-party Social Media Service**" means any services or content (including data, information, products or services) provided by a third party that may be displayed, included or made available by the Service.

"**Website**" refers to Candleweb, accessible from (candleweb.io)

Contractual Relationship

These Terms constitute a legal agreement and create a binding contract between the User and Candleweb.

Due to the rapid development of Digital Currencies and the Service, these Terms between the User and Candleweb do not enumerate or cover all the rights and obligations of each party and do not guarantee full alignment with needs arising from future development. Therefore, the Privacy Policy, Candleweb platform rules, and all other agreements entered into separately between the User and Candleweb are deemed supplementary terms that are an integral part of these terms and shall have the same legal effect. The User's use of Candleweb services is deemed the User's acceptance of the above supplementary terms.

Changes to These Terms and Conditions

We work constantly to improve our services and develop new features to make our Products better for the User and our community. As a result, we may need to update these Terms from time to time to accurately reflect our services and practices, to promote a safe and secure experience on our Products and services, and/or to comply with applicable law.

Any and all modifications or changes to these terms will become effective upon publication on the website or release to users. Once any updated Terms are in effect, the User will be bound by them if the User continues to use our Products.

We hope that the User will continue using our Products, but if the User does not agree to our updated Terms and no longer wishes to use the Service, they can delete its account at any time. It is recommended that the User frequently reviews the terms to properly aid the User's understanding of the Terms and modifications thereto.

WHAT WE DO

Blah Blah

User Accounts

When the User creates an account with Candleweb, the User must provide Candleweb information that is accurate, complete, and current at all times. The information will be used to verify Users' identity, identify traces of money laundering, terrorist financing, fraud and other financial crimes, or for other lawful purposes stated by Candleweb. We will collect, use and share such information in accordance with our Privacy Policy.

In compliance with local and global industry standards on data storage, the User agrees to allow us to keep a record of that information during the period for which the User's account is active and for six (6) years after the User's account is closed.

The User also authorizes us to conduct necessary investigations directly or through a third party to verify the User's identity or protect the User and/or us from financial crimes, such as fraud. The information we require to verify the User's identity may include, but is not limited to, the User's name, email address, cryptocurrency wallet details, exchange API, secret key, date of birth and other information collected during account registration. The User grants us the right to provide the information to payment processing third parties for the purposes of facilitating the completion of the User's order. User also acknowledges and agrees that the User's personal information may be disclosed to credit bureaus and agencies for fraud prevention or financial crime prevention, which may respond to our investigations in full.

If there are any grounds for believing that any of the information the User provided is incorrect, false, outdated or incomplete, Candleweb reserves the right to send the User a notice to demand correction, directly delete the relevant information, and, as the case may be, terminate all or part of Candleweb services we provide for the User. If we are unable to reach the User with the contact information provided, the User shall be fully liable for any loss or expense caused to Candleweb during the User's use of Candleweb services. The User hereby acknowledges and agrees that the User has the obligation to update all the information if there is any change.

Who can Use the Service

By registering to use a Candleweb Account, the User represents and warrants that:

(i) as an individual, the User is at least 21 years old or is of legal age to form a binding contract under applicable laws;

(ii) as an individual, legal person, or other organization, the User has full legal capacity and sufficient authorizations to enter into these Terms;

(iii) the User has not been previously suspended or removed from using the Candleweb Platform or the Candleweb Services;

(iv) the User does not have an existing Candleweb Account;

(v) the User is not resident, located in or otherwise attempting to access the Candleweb Platform or the Candleweb Services from, or otherwise acting on behalf of a person or legal entity that is resident or located in, a Restricted Location. For the purposes hereof, "Restricted Location" shall include but not be limited to the United States, Malaysia, Ontario (Canada), and such other locations as designated by Candleweb

from time to time as a "Restricted Location" for the purposes hereof;

(vi) if the User acts as an employee or agent of a legal entity and enters into these Terms on their behalf, the User represents and warrants that the User has all the necessary rights and authorizations to bind such legal entity and to access and use the Candleweb Platform and Candleweb Services on behalf of such legal entity; and

(vii) the User's use of the Candleweb Platform and the Candleweb Services will not violate any laws and regulations applicable to the User or the legal entity on whose behalf the User is acting, including but not limited to regulations on anti-money laundering, anti-corruption, and counter-terrorist financing.

The User agrees and accepts responsibility for remaining informed about and observing any restrictions and/or requirements imposed with respect to the access to and use of the Candleweb Platform and the Candleweb Services in each country from which the Candleweb Platform and the Candleweb Services are accessed by the User or on the User's behalf. Candleweb reserves the right to change, modify or impose additional restrictions with respect to the access to and use of the Candleweb Platform and/or the Candleweb Services from time to time at their discretion at any time without prior notification.

Account Use & Security

The User may not use as a username the name of another person or entity or that is not lawfully available for use, a name or trademark that is subject to any rights of another person or entity other than the User without appropriate authorization, or a name that is otherwise offensive, vulgar or obscene.

The Candleweb Account can only be used by the account registrant. Candleweb reserves the right to suspend, freeze or cancel the use of Candleweb Accounts by persons other than the account registrant. If the User suspects or become aware of any unauthorized use of the User's username and password, the User should notify Candleweb immediately. Candleweb assumes no liability for any loss or damage arising from the use of the Candleweb Account by the User or any third party with or without the User's authorization. The User is responsible for safeguarding any and all passwords that the User uses to access the Service and for all the transactions under the User's Candleweb Account.

By creating a Candleweb Account, the User hereby agrees that:

- the User will notify Candleweb immediately if the User is aware of any unauthorized use of the User's Candleweb Account and password or any other violation of security rules;
- the User will strictly abide by all mechanisms or procedures of Candleweb regarding security, authentication, trading, charging, and withdrawal; and
- the User will take appropriate steps to log out from Candleweb at the end of each visit.

In addition, the User agrees not to, nor allow third parties to engage in, among others, the following actions:

- Enter any non-public/ secure areas of the Service;
- Send viruses, worms, junk mail, spam, chain letters, unsolicited offers or ads of any kind and for any purpose;

- Investigate, scan, or test the Service or any other related system or network, or violate any security or authentication;
- Use any automated systems to withdraw data from the Services ("screen-scraping");
- Make and distribute copies of the Service;
- Attempt to sell, distribute, copy, rent, sub-license, loan, merge, reproduce, alter, modify, reverse engineer, disassemble, decompile, transfer, exchange, translate, hack, distribute, harm or misuse the Service; or
- Create derivative works of any kind whatsoever.

Modification of Services

Candleweb reserves the right to:

- Provide, modify or terminate at our discretion any Candleweb Services;
- Allow or prohibit some Users' use of any Candleweb Services in accordance with relevant Candleweb platform rules;
- Determine what Digital Assets are listed;
- List, add or remove Digital Assets at our discretion;
- Alter or change the order size available for each digital asset;
- Revise its prices at any time before or after accepting an Order; and
- Change or update information and correct errors, inaccuracies, or omissions at any time.

with or without notifying the User and shall have no liability to Users in connection with such additions, removals, amendments, restrictions or prohibitions.

Offers and Prices

All offers and free trials regarding the Services are subject to these Terms. The prices on the Website, App and Platform do not include taxes and expenses, unless indicated otherwise. Candleweb reserves the right to amend its prices at any time. Such price change may take effect immediately. Candleweb cannot be held to an offer or quotation that can reasonably be understood to contain an obvious mistake or error.

Subscription

The User needs a subscription to use the functions of the Service (the "Subscription"). Subscriptions are offered for a fixed amount per month and/or per year and are not charged based on use. The User can apply for a Subscription to our Service.

Without prejudice to the other provisions in these Terms, the Subscription shall commence and expire in accordance with the start date and end date indicated in the subscription package, unless earlier terminated by User in accordance with these Terms or by Candleweb if the User violates these Terms and/or applicable laws and regulations.

Candleweb will give the User access to the Service corresponding to its Subscription immediately upon the start date of such Subscription. The User can use and set up one Account on the Service on the basis of one subscription.

Payment

The price of the subscription will be paid every month by User. Possible methods of payment are displayed on the Website and include numerous cryptocurrencies.

In the event that Candleweb is unable to collect the fees due, or the User does not pay the fees on time (one month from the last payment), Candleweb has the right to disable any functionality of the Platform or Service to the User, without prejudice to any other rights Candleweb may have. The Account of the User will remain active for the period that the User has already paid for. The User further authorizes us to use a third party to process payments, and consent to the disclosure of the User's payment information to such third party.

Payment Information: The User will keep contact information, billing information and credit card information (where applicable) up to date. All payment obligations are non-cancellable and all amounts paid are non-refundable, except as specifically provided for in these Terms. All fees are due and payable in advance for the entire Subscription Term, unless otherwise agreed in writing.

Exchange Fees and Tax: All Subscriptions are exclusive of Exchange Fees and taxes, which Candleweb will charge as applicable, or include in its invoices, as the case may be. The User agrees to pay any Exchange Fee applicable to the use of our Services. The User agrees to pay any taxes applicable to the use of Candleweb Services and any additional services or products if applicable. The User shall have no liability for any taxes based upon our gross revenues or net income. All fees are exclusive of any Value Added Taxes (VAT) and the User agrees to pay any VAT applicable to the use of our Services. If the User is required to deduct or withhold any tax, the User must pay the amount deducted or withheld as required by law and pay Candleweb the full amount of payment due as if there were no deduction or withholding.

Order Cancellation

We reserve the right to refuse or cancel the User's Order at any time for certain reasons including but not limited to:

- Product availability
- Errors in the description or prices of Products
- Errors in the User's Order

We also reserve the right to refuse or cancel the User's Order if fraud or an unauthorized or illegal transaction is suspected.

Helpdesk

Candleweb has a helpdesk where the User can ask questions about the Services. Candleweb will only advise about the functioning of the Services.

Candleweb explicitly does not:

- Give Users any personal advice on recommended settings for the Service;
- Give Users any personal financial advice.

Candleweb may upload general tutorials and academy videos on the Website, about the functioning of the Service. All tutorials, videos and templates uploaded by Candleweb are general and contain in no way personal and/or financial advice. All use of these tutorials, videos and templates shall be followed at the sole risk of the User.

Risk

Due to the volatility of the market, the User acknowledges that there are risks involved in the use of our Service. The User, therefore, acknowledges having a full understanding of the price volatility in the cryptocurrency market and that the potential loss in trading or holding cryptocurrencies can be all or substantial. The User, therefore, guarantees and agrees to invest only such funds as the User can afford to lose.

The User warrants that the User is aware that additional risks of trading cryptocurrencies may exist that have not been outlined in these Terms, or on any of our Services. The User agrees and takes full responsibility for assessing all the risks and determining the compatibility between the level of knowledge or financial standing the User possesses and the risk tolerance required for the use of our Services and the use and trade of cryptocurrencies which are part of a volatile market.

The User further acknowledges that among the risks inherent in making use of the service is the risk of possible errors and interruptions, and the User assumes full responsibility for any liability occasioned as a result of same.

Candleweb does not provide any investment, legal or tax advice. Candleweb does not consider the personal circumstances (among which are the User's financial situation and investment objectives) of the User. If the User wishes to receive such advice or considerations, it is the User's responsibility to seek independent, professional advice prior to the use of our Services.

Intellectual Property

Candleweb grants the User a revocable, limited, royalty-free, non-exclusive, personal, non-transferable/ sub-licensable license to use or access Candleweb Services provided that the User remains in compliance with the terms and conditions of these Terms. The User is however, prohibited from using Candleweb service for resale or commercial purposes, either for the User's purposes or on behalf of a third party or entity. Any attempt to do so will result in a material breach of these Terms.

Candleweb reserves all rights not expressly granted in these Terms and the User is prohibited from using Candleweb Services in any way not expressly authorised by these Terms.

Under these Terms, only a limited license is granted to access and use Candleweb Services. The User, therefore, agrees that when using Candleweb Services, Candleweb does not transfer Candleweb Services or the ownership or intellectual property rights of any Candleweb intellectual property to the User or anyone else. All the text, graphics, user interfaces, visual

interface, photos, sounds, process flow diagrams, computer code (including HTML code), programs, software, products, information and documents, as well as the design, structure, selection, coordination, expression, functionality, look and feel, and layout of any content included in the services or provided through Candleweb Services, are exclusively owned, controlled and/or licensed by Candleweb, its members, operators, parent companies, licensors or affiliates. Our trademarks and trade dress may not be used in connection with any product or service without the prior written consent of the Company.

User Feedback

Candleweb owns any feedback, suggestions, ideas, or other information or materials (hereinafter collectively referred to as "Feedback") about Candleweb or Candleweb Services that the User provides through email, Candleweb Services, or other ways. The User hereby assigns all rights, ownership and interest in any Feedback and all related intellectual property rights to Candleweb. In the event that for any reason such assignment is ineffective, the User grants the Company a non-exclusive, perpetual, irrevocable, royalty-free, worldwide right and license to use, reproduce, disclose, sub-license, distribute, modify and exploit such Feedback without restriction. The User has no right and hereby waives any request for acknowledgement or compensation based on any Feedback, or any modifications based on any Feedback.

Restriction

While using Candleweb Services, the User agrees and undertakes to comply with the following provisions:

- During the use of Candleweb Services, all activities the User carries out should comply with the requirements of applicable laws and regulations, these Terms, and various guidelines of Candleweb;
- The User's use of Candleweb Services should not violate public interests, public morals, or the legitimate interests of others, including any actions that would interfere with, disrupt, negatively affect, or prohibit other Users from using Candleweb Services;
- The User agrees not to use the services for market manipulation (such as pump and dump schemes, wash trading, self-trading, front running, quote stuffing, and spoofing or layering, regardless of whether prohibited by law);

Without written consent from Candleweb, the following commercial uses of Candleweb data are prohibited:

- Trading services that make use of Candleweb quotes or market bulletin board information.
- Data feeding or streaming services that make use of any market data of Candleweb.
- Any other websites/apps/services that charge for or otherwise profit from (including through advertising or referral fees) market data obtained from Candleweb.

Without prior written consent from Candleweb, the User may not modify, replicate, duplicate,

copy, download, store, further transmit, disseminate, transfer, disassemble, broadcast, publish, remove or alter any copyright statement or label, or license, sub-license, sell, mirror, design, rent, lease, private label, grant security interests in the properties or any part of the properties, or create their derivative works or otherwise take advantage of any part of the properties.

The User may not:

(i) use any deep linking, web crawlers, bots, spiders or other automatic devices, programs, scripts, algorithms or methods, or any similar or equivalent manual processes to access, obtain, copy or monitor any part of the properties, or replicate or bypass the navigational structure or presentation of Candleweb Services in any way, in order to obtain or attempt to obtain any materials, documents or information in any manner not purposely provided through Candleweb Services;

(ii) attempt to access any part or function of the properties without authorization, or connect to Candleweb Services or any Candleweb servers or any other systems or networks of any Candleweb Services provided through the services by hacking, password mining or any other unlawful or prohibited means;

(iii) probe, scan or test the vulnerabilities of Candleweb Services or any network connected to the properties, or violate any security or authentication measures on Candleweb Services or any network connected to Candleweb Services;

(iv) reverse look-up, track or seek to track any information of any other Users or visitors of Candleweb Services;

(v) take any actions that impose an unreasonable or disproportionately large load on the infrastructure of systems or networks of Candleweb Services or Candleweb, or the infrastructure of any systems or networks connected to Candleweb services;

(vi) use any devices, software or routine programs to interfere with the normal operation of Candleweb Services or any transactions on Candleweb Services, or any other person's use of Candleweb Services;

(vii) forge headers, impersonate, or otherwise manipulate identification, to disguise the User's identity or the origin of any messages or transmissions the User sends to Candleweb; or

(viii) use Candleweb Services in any illegal way.

By accessing Candleweb Services, the User agrees that Candleweb has the right to investigate any violation of these Terms, unilaterally determine whether the User has violated these Terms, and take actions under relevant regulations without the User's consent or prior notice. Examples of such actions include, but are not limited to:

- Freezing the User's account;
- Blocking and closing order requests;
- Reporting the incident to the authorities;
- Publishing the alleged violations and actions that have been taken;
- Deleting any information the User published that is found to be in violation.

No Financial Advice

Candleweb is not the User's broker, intermediary, agent, or advisor and has no fiduciary relationship with or obligation to the User in connection with any trades or other decisions or activities effected by the User using Candleweb Services. No communication or information provided to the User by Candleweb is intended as or shall be considered or construed as, investment advice, financial advice, trading advice, or any other sort of advice. Unless otherwise specified in these Terms, all trades are executed automatically, based on the parameters of the User's order instructions and in accordance with posted trade execution procedures, and the User is solely responsible for determining whether any investment, investment strategy or related transaction is appropriate for the User according to personal investment objectives, financial circumstances and risk tolerance, and the User shall be solely responsible for any loss or liability therefrom. The User should consult legal or tax professionals regarding the User's specific situation.

Candleweb does not recommend that any Digital Asset should be bought, earned, sold, or held by the User. Before making the decision to buy, sell or hold any Digital Asset, the User should conduct due diligence and consult financial advisors prior to making any investment decision. Candleweb will not be held responsible for the decisions the User makes to buy, sell, or hold Digital Asset based on the information provided by Candleweb.

Limitation of Liability

To the maximum extent permitted by applicable law, in no event will Candleweb, its affiliates and their respective shareholders, members, directors, officers, employees, attorneys, agents, representatives, suppliers or contractors be liable for any incidental, indirect, special, punitive, consequential or similar damages or liabilities whatsoever (including, without limitation, damages for loss of data, information, revenue, profits, business interruption, personal injury, loss of privacy or business, financial, or other benefits) arising out of Candleweb services, any performance or non-performance of Candleweb services, or any other product, service or other item provided by or on behalf of Candleweb and its affiliates, whether under contract, statute, strict liability or other theory even if Candleweb has been advised of the possibility of such damages. In the event that the above limitations may not apply as a result of local legislation to that effect, each party's liability will be limited to the greatest extent permitted by law.

Notwithstanding the foregoing, in no event will the liability of Candleweb, its affiliates and their respective shareholders, members, directors, officers, employees, attorneys, agents, representatives, suppliers or contractors arising out of services offered by or on behalf of Candleweb and its affiliates, any performance or non-performance of Candleweb services, or any other product, service or other item, whether under contract, statute, strict liability or other theory, exceed the greater of (1) 100 USD or (2) the amount of the fees paid by the User to Candleweb under these terms in the two months immediately preceding the event giving rise to the claim for liability.

Disclaimers

Candlebot Performance Disclaimer

In addition to the Limitations of Liabilities described above, the User understands that the AI System, (referred to as “Candlebot”) and results shown therein are for informational purposes only. All the information included herein should not be considered as a recommendation to buy, sell or hold any security or use any trading system.

The User understands that Candleweb is not responsible for any losses that may result from whatever action the User elects to take based on the User’s use of Candleweb Services including the Candlebot software. The Candlebot may highlight different types of systems, algorithms and parameters under which the User may choose to allow it execute trades. Any type of system or algorithm the User elects bears certain risks, along with the inherent financial risks related to investing in the stock market.

When trades are executed in real market conditions using market orders, the User may suffer financial losses due to market instability and/or volatility which may cause the market to move against the User’s position. Therefore, a decision to trade in the cryptocurrency market is made at the User’s own risk and responsibility. It is strongly recommended that the User does personal research prior to commencing trading.

Candlebot systems assume trades occur with at least one share with no consideration for partial fills, nor increased market order slippage. Therefore, the User’s actual trading results may not match the results displayed in the Candlebot panel.

Hypothetical or simulated performance results have certain inherent limitations. Unlike an actual performance record, simulated results do not represent actual trading. Also, since the trades have not actually been executed, the results may have under or over-compensated for the impact, if any, of certain market factors, such as lack of liquidity. Simulated trading programs in general are also subject to the fact that they are designed with the benefit of hindsight. No representation is being made that any account will or is likely to achieve profits or losses similar to those shown.

"AS IS" Disclaimer

The Service is provided to the User "AS IS" and "AS AVAILABLE" and with all faults and defects without warranty of any kind. Candleweb expressly disclaims, and the User waives, any and all other warranties of any kind, whether express, implied, statutory or otherwise, including, without limitation, warranties of merchantability, fitness for a particular purpose, title or non-infringement or warranties arising from a course of dealing, performance, usage or trade practice.

Without limiting the foregoing, Candleweb does not represent or warrant that the site, Candleweb services or Candleweb materials are accurate, complete, reliable, current, error-free, or free of viruses or other harmful components. Candleweb provides no warranty or undertaking, and makes no representation of any kind that the Service will meet the User’s requirements, achieve any intended results, be compatible or work with any other software, applications, systems or services, operate without interruption, meet any performance or

reliability standards or be error-free or that any errors or defects can or will be corrected. Candleweb does not guarantee that any order will be executed, accepted, recorded or remain open. Except for the express statements, agreements and rules outlined in these terms, the User hereby acknowledges and agrees that the User has not relied upon any other statement or agreement, whether written or oral, with respect to the User's use and access of Candleweb services.

Without limiting the foregoing, the User hereby understands and agrees that Candleweb will not be liable for any losses or damages arising out of or relating to:

(i) any inaccuracy, defect or omission of digital assets price data,

(ii) any error or delay in the transmission of such data,

(iii) interruption in any such data,

(iv) regular or unscheduled maintenance carried out by Candleweb and service interruption and change resulting from such maintenance,

(v) any damages incurred by other users' actions, omissions or violation of these terms,

(vi) any damage caused by illegal actions of other third parties or actions without being authorized by Candleweb; and

(vii) other exemptions mentioned in disclaimers and platform rules issued by Candleweb.

The disclaimer of implied warranties contained herein may not apply if and to the extent, it is prohibited by applicable law of the jurisdiction in which the User resides. In such a case the exclusions and limitations outlined in this section shall be applied to the greatest extent enforceable under applicable law.

Third-Party Links

Our Service may contain links to third-party websites or services that are not owned or controlled by the Company. Candleweb has no control over and assumes no responsibility for, the content, privacy policies, or practices of any third-party websites or services. The User further acknowledges and agrees that Candleweb shall not be responsible or liable, directly or indirectly, for any damage or loss caused or alleged to be caused by or in connection with the use of or reliance on any such content, goods or services available on or through any such web sites or services.

We strongly advise the User to read the terms and conditions and privacy policies of any third-party websites or services that the User visits.

Indemnity

The User agrees to indemnify and hold harmless Candleweb, its Operators, their affiliates, contractors, licensors, and their respective directors, officers, employees and agents from and against any direct, indirect, incidental, special, exemplary, consequential or punitive damages arising from any claims, actions, proceedings, investigations, demands, suits, as well as costs, expenses and damages (including attorneys' fees, fines or penalties imposed by any regulatory

authority) arising out of or related to:

(i) the User's use of, or conduct in connection with, Candleweb Services,

(ii) the User's breach or our enforcement of these Terms, or

(iii) the User's violation of any applicable law, regulation, or rights of any third party during the User's use of Candleweb Services.

If the User is obligated to indemnify Candleweb, its Operators, their affiliates, contractors, licensors, and their respective directors, officers, employees or agents pursuant to these Terms, Candleweb will have the right, at its sole discretion, to control any action or proceeding and to determine whether Candleweb wishes to settle, and if so, on what terms.

Compliance with Local Laws

It is the User's responsibility to abide by local laws in relation to the legal usage of Candleweb Services in the User's local jurisdiction as well as other laws and regulations applicable to the User. The User must also factor, to the extent of their local laws all aspects of taxation, the withholding, collection, reporting and remittance to their appropriate tax authorities. All users of Candleweb services acknowledge and declare that their funds come from legitimate sources and do not originate from illegal activities; The User agrees that Candleweb will require and collect the necessary information and materials as required by relevant laws or government orders to verify the legality of the sources and use of the User's funds. Candleweb maintains a stance of cooperation with law enforcement authorities globally and will not hesitate to seize, freeze, and terminate Users' accounts and funds which are flagged or investigated by legal mandate.

Suspension/ Termination of Service

Suspension

The User agrees that Candleweb shall have the right to immediately suspend the User's Candleweb Account (and any accounts beneficially owned by related entities or affiliates), freeze or lock the Digital Assets or funds in all such accounts, and suspend The User's access to Candleweb for any reason including if Candleweb suspects any such accounts to be in violation of these Terms, our Privacy Policy, or any applicable laws and regulations. The User agrees that Candleweb shall not be liable to you for any permanent or temporary modification of the User's Candleweb Account, or suspension or termination of the User's access to all or any portion of Candleweb Services.

Candleweb shall reserve the right to keep and use the transaction data or other information related to such Candleweb Accounts. Instances in which the User's Account may be suspended include:

- The Candleweb Account is subject to a governmental proceeding, criminal investigation or other pending litigation;
- We detect unusual activities in the Candleweb Account;

- We detect unauthorized access to the Candleweb Account;
- We are required to do so by a court order or command by a regulatory/government authority.

Cancellation of Candleweb Accounts

If the User wishes to terminate the Account, the User may delete the account or discontinue the use of the Service.

Candleweb may terminate or suspend the User's Account immediately, without prior notice or liability, for any reason whatsoever, including without limitation if the User breaches these Terms and Conditions. Upon termination, the User's right to use the Service will cease immediately.

Without limiting the foregoing, in case of any of the following events, Candleweb shall have the right to directly terminate these Terms by cancelling the User's Candleweb Account, and shall enjoy the right but not the obligation to permanently freeze or cancel the authorizations of the User's Candleweb Account on Candleweb and withdraw the corresponding Candleweb Account thereof:

- after Candleweb terminates services to the User;
- the User allegedly registers or registers in any other person's name as a Candleweb User again, directly or indirectly;
- the information that the User has provided is untruthful, inaccurate, outdated or incomplete;
- when these Terms are amended, the User expresses unwillingness to accept the amended Terms by applying for cancellation of the Candleweb Account or by other means;
- The User requests that the Account be terminated; and
- any other circumstances where Candleweb deems it should terminate Candleweb Services.

Should the User's Candleweb Account be terminated, the account and transactional information that meet data retention standards will be securely stored for 6 (six) years. In addition, if a transaction is unfinished during the account termination process, Candleweb shall have the right to notify the User's counterparty of the situation at that time.

If Candleweb is informed that any Digital Assets or funds held in the User's Candleweb Account are stolen or otherwise are not lawfully possessed by the User, Candleweb may, but has no obligation to, place an administrative hold on the affected funds and the User's Candleweb Account. If Candleweb lays down an administrative hold on some or all of the User's funds or Candleweb Account, Candleweb may continue such hold until the dispute has been resolved and evidence of the resolution acceptable to Candleweb has been provided in a form acceptable to Candleweb. Candleweb will not involve itself in any such dispute or the resolution of the dispute. The User agrees that Candleweb will have no liability or responsibility for any such hold, or for the User's inability to withdraw Digital Assets or funds or execute trades during the period of any such hold.

Remaining Funds after Candleweb Account Termination

Except in the case of fraud investigations, investigations of violation of law or violation of these Terms, once a Candleweb Account is closed/withdrawn, all remaining account balance (which includes charges and liabilities owed to Candleweb) will be payable immediately to Candleweb. Upon payment of all outstanding charges to Candleweb (if any), the User will have 5 business days to withdraw all Digital Assets or funds from the account.

Candleweb maintains full custody of the Digital Assets, funds and User data/information which may be turned over to governmental authorities in the event of Candleweb Accounts' suspension/closure arising from fraud investigations, investigations of violation of law or violation of these Terms.

Dormant Accounts

Candleweb may provide a written notice requiring the User to close all open positions and withdraw all Digital Assets from the User's Candleweb Account within 30 days of the notice. In the event that the User fails to do so, Candleweb may in its absolute discretion and without prior notice to the User:

(i) deem the User's Candleweb account as a dormant account;

(ii) close any positions in any Candleweb products;

(iii) convert the Digital Assets to a different type of Digital Asset (e.g., from BTC to BUSD). Candleweb shall not be liable for any loss of profit, tax obligations or any other loss, damage or expense incurred by the User resulting from such conversion;

(iv) transfer such dormant account (including any Digital Assets contained therein) to an affiliate of Candleweb, any third-party custodian or an isolated wallet where it is deemed reasonably necessary by Candleweb to do so. In the event that such transfer has taken place, the User has the right to retrieve the digital assets subject to satisfying Candleweb's verification requirements, including completing KYC;

(v) charge a dormant account fee to cover the cost of maintaining the assets by Candleweb, its affiliates or any third-party and such fee shall be withdrawn directly from the dormant account on a monthly basis; and

(vi) close a dormant account at any time, without liability for any loss, damage or expense incurred by the User as a result of the closure of a dormant account unless there was fraud or willful default by Candleweb.

After a dormant account is closed, it cannot be reactivated. (i.e. the User will need to register a new Candleweb account if the User wishes to continue to use Candleweb Services).

Governing Law

The laws of the Federal Republic of Nigeria, excluding its conflicts of law rules, shall govern these Terms and the User's use of the Service.

Dispute Resolution

If the User has any concern or dispute about the Service, the User agrees to first try to resolve the dispute by contacting Candleweb.

Candleweb wishes to address The User's concerns without resorting to formal legal proceedings, if possible. If the User has a dispute with Candleweb, then the User should contact Candleweb and a ticket number will be assigned. Candleweb will attempt to resolve the dispute internally as soon as possible. The parties agree to negotiate in good faith to resolve the dispute (which discussions shall remain confidential and be subject to applicable rules protecting settlement discussions from use as evidence in any legal proceeding).

Notice of Claim

In the event that the dispute cannot be resolved satisfactorily, and the User wishes to assert a legal claim against Candleweb, then the User agrees to set forth the basis of such claim in writing in a "Notice of Claim," as a form of prior notice to Candleweb. The Notice of Claim must:

(1) describe the nature and basis of the claim or dispute,

(2) set forth the specific relief sought,

(3) provide the original ticket number, and

(4) include the User's Candleweb account information.

The Notice of Claim should be submitted to an email address or hyperlink provided in the User's correspondence with Candleweb. After the User has provided the Notice of Claim to Candleweb, the dispute referenced in the Notice of Claim may be submitted by either Candleweb or the User to arbitration in accordance with the provisions of this Dispute Resolution Section. For the avoidance of doubt, the submission of a dispute to Candleweb for resolution internally and the delivery of a Notice of Claim to Candleweb are prerequisites to the commencement of an arbitration proceeding (or any other legal proceeding). During the arbitration, the amount of any settlement offer made by the User or Candleweb shall not be disclosed to the arbitrator.

Arbitration

The User agrees with Candleweb that, subject to the above, any dispute, claim, or controversy between the User and Candleweb (and/or Candleweb Operators) arising in connection with or relating in any way to these Terms or to the User's relationship with Candleweb (and/or Candleweb Operators) as a user of Candleweb Services (whether based in contract, tort, statute, fraud, misrepresentation, or any other legal theory, and whether the claims arise during or after the termination of these Terms) will be determined by mandatory final and binding individual (not class) arbitration. The User and Candleweb further agree that the arbitrator shall have the exclusive power to rule on his or her own jurisdiction, including without limitation any objections with respect to the existence, scope or validity of the agreement to arbitrate, or to the arbitrability of any claim or counterclaim. The arbitrator must follow this agreement and can award the same damages and reliefs as a court (including, if applicable, attorney fees), except that the arbitrator may not award declaratory or injunctive relief in favour of anyone but the parties to the arbitration. The arbitration provisions outlined in this Section will survive the termination of these Terms.

Arbitration Rules: The arbitration shall be subject to the Arbitration and Conciliation Act, CAP A18 Laws of the Federation of Nigeria (2004), or any statutory modification or re-enactment thereof at the time being in force when the Notice of Claim is submitted. The arbitral proceedings shall be presided over by a sole arbitrator to be jointly appointed and any award rendered by the Arbitrator may be entered in any court having jurisdiction thereto. In the event that parties are unable to mutually agree on a sole arbitrator, the arbitrator will be appointed by a judge of the Federal High Court of Nigeria. The costs of Arbitration will be borne equally by the User and Candleweb regardless of which party to the dispute is successful, provided that each party to the dispute shall be responsible for its legal costs and the costs of any witnesses put forward by such party to the dispute. The venue for the arbitration shall be exclusively the Federal Capital Territory, Abuja. The User consents to personal jurisdiction in those courts. Any arbitration will be conducted in the English language. Regardless of the manner in which the arbitration is conducted, the arbitrator shall issue a reasoned written decision sufficient to explain the essential findings and conclusions on which the decision and award, if any, are based.

Limitation of Time for Filing: Any arbitration against Candleweb or its operators must be commenced by filing a request for arbitration within one (1) year, after the date the party asserting the claim first knows or reasonably should know of the act, omission or default giving rise to the claim; and there shall be no right to any remedy for any claim not asserted within that period. This one-year limitation period is inclusive of the internal dispute resolution procedure set forth above. There shall be no right to any remedy for any claim not asserted within that period. If applicable law prohibits a one-year limitation period for asserting claims, any claim must be asserted within the shortest period permitted by applicable law.

Notice: If we request arbitration against the User, we will give notice at the email address or mailing address the User provided. The User agrees that any notice sent to this email or mailing address shall be deemed effective for all purposes, including without limitation to determinations of the adequacy of service. It is the User's obligation to ensure that the email address and/or mailing address on file with Candleweb is up-to-date and accurate.

Confidentiality: The User agrees with Candleweb that the arbitration shall be kept confidential. The existence of the arbitration, any non-public information provided in the arbitration, and any submissions, orders or awards made in the arbitration (together, the "Confidential Information") shall not be disclosed to any non-party except the Arbitrator, the parties, their counsel, experts, witnesses, accountants and auditors, insurers and reinsurers, and any other person necessary to the conduct of the arbitration. Notwithstanding the foregoing, Candleweb may disclose Confidential Information to the extent that disclosure may be required to fulfil a legal duty, protect or pursue a legal right, or enforce or challenge an award in bona fide legal proceedings. This confidentiality provision shall survive termination of these Terms and any arbitration brought pursuant to these Terms.

Class Action Waiver

The User agrees with Candleweb that any claims relating to these Terms or to the User's relationship with Candleweb as a user of Candleweb Services (whether based on contract, tort, statute, fraud, misrepresentation, or any other legal theory, and whether the claims arise during or after the termination of these Terms) shall be brought against the other party in arbitration on an individual basis only and not as a class member in a purported class or representative

action. The User and Candleweb further agree to waive any right for such claims to be brought, heard, or arbitrated as a class, collective, representative, or private attorney general action, to the extent permissible by applicable law. Combining or consolidating individual arbitrations into a single arbitration is not permitted without the consent of all parties, including Candleweb.

Modifications

Candleweb reserves the right to update, modify, revise, suspend, or make any future changes to the Dispute Resolution Section subject to applicable law. For the avoidance of doubt, the User hereby consents and agrees that it is the User's responsibility to ensure that the User's understanding of this Section is up to date. Subject to the applicable law, the User's continued use of Candleweb Services shall be deemed acceptance of any modifications regarding the parties' Agreement to Arbitrate. The User agrees that if the User objects to the modifications, Candleweb may block access to the User's account pending closure of the account. In such circumstances, the Terms of Service/Use prior to modification shall remain in full force and effect pending closure of the User's account.

Privacy Policy

Access to Candleweb Services will require the submission of certain personally identifiable information. Please review Candleweb's Privacy Policy at (link) for a summary of Candleweb's guidelines regarding the collection and use of personally identifiable information.

Miscellaneous

These Terms shall not be interpreted as facts or evidence of an association, joint venture, partnership, or franchise between the parties.

Severability

If any provision of these Terms is held to be unenforceable or invalid, such provision will be changed and interpreted to preserve the spirit and accomplish the objectives of such provision to the greatest extent possible under applicable law and the remaining provisions will continue in full force and effect.

Waiver

Except as provided herein, the failure to exercise a right or to require the performance of an obligation under this Terms shall not affect a party's ability to exercise such right or require such performance at any time thereafter nor shall be the waiver of a breach constitute a waiver of any subsequent breach.

Force Majeure

Candleweb will not be liable for any delay or failure to perform as required by these Terms because of any cause or condition beyond Candleweb's reasonable control.

Assignment

The User may not assign or transfer any right to use Candleweb Services or any other rights or

obligations under these Terms without prior written consent from Candleweb, including any right or obligation related to the enforcement of laws or the change of control. Candleweb may assign or transfer any or all of its rights or obligations under these Terms, in whole or in part, without notice or obtaining the User's consent or approval.

In the event that the User does not wish to continue the contract with the assignee, the User may contact us to end the contract or cease to use the Service.

Matters Related to Apple Inc

If the User uses any device manufactured by Apple Inc. to participate in any commercial activities or reward programs through Candleweb Services, such activities and programs are provided by Candleweb and are not associated with Apple Inc. in any manner.

Equitable Remedies

The User acknowledges that a violation or of breach these Terms may cause irreparable harm to Candleweb and its affiliates, and Candleweb shall have the right to seek injunctive relief against the User in addition to any other legal remedies.

Contact Us

If you have any questions about these Terms and Conditions, the User can contact us:

By visiting this page on our website: (link)

By sending us an email: (link)